

Independent Contractor Agreement
(Version:04, dated 1.01.2026)

This Agreement is made between **Biz-Tech Analytics Pvt. Ltd.** ("Client") with a principal place of business at 808 Chiranjiv Tower, 43 Nehru Place, New Delhi 110019 and
("Contractor/ Service Provider"), with their address
.....

1. Services to Be Performed

The Service Provider shall provide the Client the services (the "Services") and deliver the materials and deliverables (the "Deliverables") set out in one or more statements of work to be issued by the Client and accepted by the Service Provider (each, a "Statement of Work").

The contractor agrees to provide the Client with the following services:

Any and all services related to Data Labeling, Annotation, and Generation as detailed under the Statement of Work (SOW). The SOW will change from Project to Project, however, this Independent Contractor Agreement will stay the same.

2. Service Provider Obligations:

The Service Provider shall be responsible for the following:

1. Achieve daily targets as assigned
2. Actively work for the agreed-upon hours and days per week, as outlined in the SOW.
3. Provide the Contact Information, and communicate on a regular basis
4. Submit progress reports and other requested information as required by Client
5. Follow the instructions and other guidelines issued by the Client on any and all official communication channels, including email, Slack, Whatsapp, Mobile, etc.
6. Respond within 24 hours on the official communication channels, including email, Slack, Whatsapp, Mobile, etc.
7. Proper handover and discharge of the duties, as requested by Client, on termination or expiration of the Contract
8. The Service Provider is not allowed to appoint sub-contractors or employees to perform the services under this agreement. The Contractor assures that all work performed by them under this agreement is done solely by them, strictly adhering to the guidelines provided by Client

3. Payments

In consideration of the services to be performed by the Contractor, the Client agrees to pay the Contractor as per the agreed rates as mentioned in the Statement of Works (SOW).

The contractor shall be paid within 45 days after the Contractor submits an invoice to the Client. The invoice should include the following: an invoice number, the total number of hours, the dates covered by the invoice, and a summary of the work performed. The Contractor shall issue the invoice within ten (10) days of the start of the subsequent month following completion of the work. Compensation shall be payable after deduction of applicable TDS.

Payment responsibility of the Client is only to the Contractor against the Invoice submitted by the Contractor. The Invoice shall be submitted in the format as per Schedule A. The Client is not responsible

for any payment other than due to the Contractor under this agreement. Additionally, you will be entirely responsible for any subsequent deductions charged by the end customer for the work/tasks submitted by you under this agreement.

4. Expenses

Contractor shall be responsible for all expenses incurred while performing services under this Agreement.

5. Independent Contractor Status

Contractor is an independent contractor, and shall not be deemed as, the Client's employee. In its capacity as an independent contractor, the Contractor agrees and represents, and Client agrees, Contractor has the right to perform services for others during the term of this Agreement.

6. Fringe Benefits

Contractor understands that Contractor is not eligible to participate in any employee pension, health, vacation pay, sick pay, or other fringe benefit plan of Client.

7. Indemnification

Contractor will indemnify and hold harmless Client from and against any and all third party claims, suits, actions, demands, and proceedings against Client and all losses, costs, and liabilities related thereto arising out of or related to (i) an allegation that any item, material and other deliverable delivered by Contractor under this Agreement infringes any intellectual property rights or publicity rights of a third party; (ii) any breach of the warranties provided in Section 8; or (iii) any negligence by Contractor or any other act or omission of Service Provider, including without limitation any breach of this Agreement by Service Provider.

8. Warranty and Disclaimer

Service Provider represents and warrants that it shall perform the Services:

1. In accordance with the terms and subject to the conditions set out in the respective Statement of Work and this Agreement.
2. In a timely, workmanlike, and professional manner in accordance with generally recognized industry standards for similar services.
3. In accordance with all federal, state, and local laws, rules, and regulations applicable to its performance of the Services under the Agreement and/or its development and/or provision of the Deliverables., including without limitation those laws applicable to import and export and those laws governing labor and employment.
4. Service Provider represents and warrants that the Deliverables will comply with the requirements set forth in the Statement of Work, the documentation and specifications for those materials and deliverables, and any samples or documents provided by the Client to Service Provider

9. Limitation of Liability.

9.1 In No Event Shall Client be Liable to the Service Provider Or to Any Third Party for any loss of use, revenue or profit or loss of data or diminution in value, or for any consequential, incidental, indirect, exemplary, special or punitive damages whether arising out of breach of contract, tort (including negligence) or otherwise, regardless of whether such damage was foreseeable and whether or Client has been advised of the possibility of such damages, and notwithstanding the

failure of any agreed or other remedies of its essential purpose.

Page 2 | 5

9.2 In no event shall Client's aggregate liability arising out of or related to this agreement, whether arising out of or related to breach of contract, tort (including negligence) or otherwise, exceed the aggregate amounts paid or payable to service provider pursuant to the applicable statement of work in the 3 month period preceding the event giving rise to the claim.

10. Entire Agreement

This Agreement, including and together with any related Statements of Work, exhibits, schedules, attachments, and appendices, constitutes the entire agreement, alongside NDA (as signed between Parties) with respect to the subject matter contained herein and supersedes all prior and contemporaneous understandings, agreements, representations and warranties, both written and oral, regarding such subject matter. The parties acknowledge and agree that if there is any conflict between the terms and conditions of this Agreement and the terms and conditions of any Statement of Work, the terms and conditions of this Agreement shall supersede and control.

11. Severability

If any term or provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction; provided, however, that if any fundamental term or provision of this Agreement is invalid, illegal or unenforceable, the remainder of this Agreement shall be unenforceable.

12. Waiver

No waiver by any Party of any of the provisions of this Agreement shall be effective unless explicitly set forth in writing and signed by the Party so waiving. Except as otherwise set forth in this Agreement, no failure to exercise, or delay in exercising, any right, remedy, power or privilege arising from this Agreement shall operate or be construed as a waiver thereof, nor shall any single or partial exercise of any right, remedy, power or privilege hereunder preclude any other or further exercise thereof or the exercise of any other right, remedy, power or privilege.

13. Injunctive Relief.

Service Provider's obligations under this Agreement are of a unique character that gives them particular value; Service Provider's breach of any of these obligations will cause irreparable and continuing damage to Client for which money damages are insufficient, and Client is entitled to injunctive relief, a decree for specific performance, and all other relief as may be proper (including money damages if appropriate).

14. Term, Termination, and Survival.

14.1 This Agreement shall commence as of the Effective Date and shall continue thereafter until the completion of the Services under all Statements of Work, unless sooner terminated pursuant to Section 14.2 or Section 14.3

14.2 Either Party may terminate this Agreement, effective upon written notice to the other Party (the "Defaulting Party"), if the Defaulting Party breaches this Agreement, and such breach is incapable of cure, or with respect to a material breach capable of cure, the Defaulting Party does

not cure such breach within 30 days after receipt of written notice of such breach.

14.3 The Client has the right to terminate the Contract on an immediate basis without any notice

Page 3 | 5

period for any reason. The Contractor may terminate this Agreement for any reason or for no reason upon 15 days notice to the Client.

14.4 The Contractor is required to submit all the details & handover on the termination or expiration of the Contract. Payment settlement shall be done to the Contractor only after the proper handover to the Client.

15. Modifying the Agreement

This Agreement may be modified only by writing signed by both parties.

16. Resolving Disputes

This Agreement shall be governed by and construed in accordance with the laws of India.

17. Confidentiality

The Non-Disclosure Agreement, signed between Contractor and Client, holds true for any and all work covered in this Agreement. As described in the Non-Disclosure Agreement, Contractor acknowledges that it will be necessary for Client to disclose certain confidential and proprietary information to Contractor in order for Contractor to perform duties under this Agreement. Contractor acknowledges that disclosure to a third party or misuse of this proprietary or confidential information would irreparably harm Client. Accordingly, Contractor will not disclose or use, either during or after the term of this Agreement, any proprietary or confidential information of Client without Client's prior written permission except to the extent necessary to perform services on Client's behalf.

18. Protection Against Unfair Competition

During the term of this Agreement and for a period of two (2) years after the termination of this Agreement for any reason, Contractor including its sub-contractors, employees, or affiliates agrees not to solicit or knowingly provide competitive services for or on behalf of any entity to the Client's Customers in a capacity identical to, or substantially similar to, the capacity in which the Contractor acted for the Client's Customers during the term of this Agreement, without prior written consent.

19. Proprietary Information.

1. The product of all work performed under this Agreement ("Work Product"), including without limitation all notes, reports, documentation, drawings, computer programs, inventions, creations, works, devices, models, work-in-progress, and deliverables will be the sole property of the Client, and Contractor hereby assigns to the Client all right, title and interest therein, including but not limited to all audiovisual, literary, moral rights and other copyrights, patent rights, trade secret rights, and other proprietary rights therein. The Contractor retains no right to use the Work Product and agrees not to challenge the validity of the Client's ownership of the Work Product.
2. Contractor hereby assigns to the Client all right, title, and interest in any and all photographic images and videos or audio recordings made by the Client during Contractor's work for

them, including, but not limited to, any royalties, proceeds, or other benefits derived from such photographs or recordings.

20. No Partnership

Page 4 | 5

This Agreement does not create a partnership relationship. The Contractor does not have authority to enter into contracts on the Client's behalf.

21. Assignment and Delegation

Contractor may not assign or subcontract any rights or delegate any of its duties under this Agreement

This Agreement shall be followed by both the parties in letter and spirit.

Client	Contractor/Service Provider
Printed Name: For Biz-Tech Analytics Pvt Ltd	Printed Name:
Signature:	Signature:
Date:	Date:
Place:	Place:

Page 5 | 5